Inderjeet Singh vs Serious Fraud Investigation Office on 23 March, 2023

Author: Anup Jairam Bhambhani

Bench: Anup Jairam Bhambhani

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ BAIL APPLN. 465/2023
INDERJEET SINGH
Through: Mr. Piyush Chhabra, Adv

versus

SERIOUS FRAUD INVESTIGATION OFFICE
Through: Mr. Amit Tiwari, Senior
Counsel with Mr. Sahaj,
Ansari, Prosecutor, SFI
Shubham Gangal, Law Con
Ms. Shivani Sharma, Law
and Mr. Tarun Srivastav

CORAM:
HON'BLE MR. JUSTICE ANUP JAIRAM BHAMBHANI
ORDER

% 23.03.2023 By way of the present petition under section 438 of the Code of Criminal Procedure 1973, the petitioner seeks anticipatory bail in Complaint Case No.245/2021 filed by the respondent/SFIO.

2. As per the allegations in the complaint, monies were siphoned-off from the subject company through the petitioner's account.

3. Issue notice.

4. Mr. Amit Tiwari, learned counsel appearing for the respondent on advance copy, accepts notice; and seeks time to file reply.

5. Let reply be filed within 03 weeks; rejoinder thereto, if any, be filed within 02 weeks thereafter; with copy to the opposing counsel.

6. Learned counsel for the respondent submits that an anticipatory bail petition in a matter alleging offences under section 447 of the Companies Act, 2013 is not maintainable inter-alia in view of the twin conditions that contained in section 212(6) of the Companies Act, 2013; as also in view of the pronouncement of the Supreme Court in Satender Kumar Antil vs. Central Bureau of Investigation

and Another 1 and The Directorate of Enforcement vs. M. Gopal Reddy & Anr.2.

7. Mr. Piyush Chhabra, learned counsel for the petitioner, on the other hand relies upon the interim protective order granted by a Predecessor Bench to a co-accused. He also points-out that regular bail was granted to other co-accused in the same case.

8. Re-notify on 04th May 2023.

ANUP JAIRAM BHAMBHANI, J MARCH 23, 2023/ak (2022) 10 SCC 51 Criminal Appeal No. 534 of 2023 (Supreme Court), Judgment dated 24.02.2023